



File No.: EXP202213578

RESOLUTION ON THE FILING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On November 25, 2022, a complaint was filed with the Spanish Agency for Data Protection against LEAST COST ROUTING TELECOM, S.L. (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant states that they receive commercial calls on their mobile line ***PHONE.1, which has been registered in the Robinson List since 2019.

Along with the complaint, they attach a copy of a document certifying the registration of the receiving line in the Robinson List since April 2, 2019, and a partial copy of a bill to prove ownership of the receiving line.

They also provide screenshots justifying the receipt of telephone calls from the calling lines ***PHONE.2 and ***PHONE.3.

The last call was received on November 17, 2022, at 14:08 hours, from the calling line ***PHONE.3.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on December 23, 2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent electronically, which was duly notified on February 2, 2023.

On February 8, 2023, a response was received by this Agency indicating that they have consulted their databases and no calls have been registered to the complainant's number (an internal report is provided in this regard).

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The calling lines have been active since August 9, 2022, up to that moment, with a reseller of the respondent, called OASIP SERVICIO INTEGRAL DE COMUNICACIONES S.L., which has the relevant authorizations (A screenshot from the CNMC Operators Registry is attached, showing the activity "Resale of fixed telephone service - Direct Access" registered).

They provide a copy of the contract signed with this reseller, which establishes that OASIP is responsible for the Processing, with the respondent being the Data Processor. Within the contract, there is no obligation on the part of the respondent to respond to requests for the exercise of data protection rights. They indicate that one must go to OASIP to facilitate the identification of the holders of those lines, although it may be the case that it is a fraud through the masking of the true caller using a number they do not own.

As they are not the ones who made these calls and are not responsible for the processing, they have not implemented the protocol they have for making unsolicited calls (a copy of this protocol is provided).

THIRD: On February 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control

authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

Representatives of OASIP SERVICIO INTEGRAL DE COMUNICACIONES, S.L., state that the lines ***PHONE.2 and ***PHONE.3 were assigned on the dates when the commercial calls were made to the entity ADSL House, S.L.

Representatives of ADSL House, S.L. indicate:

The Company is engaged, among other activities, in the telemarketing of products and services, telemarketing, and the intermediation in the contracting and sale of products and services from different commercial operators.

The origin of the phone number ***PHONE.1 that appears in the information system details that on November 9, 2022, at 9:57 a.m., as a result of an action taken by the holder of that number on a website operated by ADSL HOUSE, S.L. (Simyo | More options, fewer hassles (simyotarifas.es)) to offer Simyo products and services, in which the holder voluntarily accessed, provided their phone number, and requested to be called.

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They provide details extracted from the contact management system that reflect the user's interaction on the website and the records generated by such navigation.

The previous operation requires that the client knows and expressly accepts the privacy policies of the website owner; otherwise, they cannot be contacted.

The personal data held for the line owner are:

- Phone number: ***TELÉFONO.1.

- IP address of the device from which they accessed the website: (...)

The data processing carried out by ADSL HOUSE, in addition to the activities for which this entity is responsible for processing, includes those other data processing activities for which the entity is the data processor, fundamentally for telemarketing purposes, offering products and services from different clients, with the aim that interested individuals can satisfy their expressed interests or, at least, receive the information they need about products, goods, or services.

The owner of the line ***TELÉFONO.1 voluntarily provided their phone number on the aforementioned website, expressly accepting the privacy policies and being aware of the processing of personal data that ADSL HOUSE performs on them.

The processing carried out on that number has been limited to mere attempts to contact the owner of the referred number, in order to ascertain whether there was interest in any of the products and/or services offered on the website, for which they voluntarily provided their phone number on November 9, 2022, at 9:57 AM.

These attempts at communication were ineffective because the interested party never responded to the calls made, ceasing data processing on November 18, 2022.

From that moment on, the referred number has not been contacted for any commercial or other purposes.

In the entity's commercial campaigns, files or exclusion lists are consulted, either general (commonly known as the Robinson List) or of a particular nature for clients.

In this case, no consultation was made since the line owner had provided their consent to receive communication.

Once the commercial campaign has concluded, the processing carried out corresponds to the purposes of processing registered in our privacy policy, provided that the interested party consents to receive other similar or different commercial offers regarding those for which the previous processing was carried out.

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They provide a record of calls made to the number ***TELÉFONO.1, concentrated in the period between November 9 and 18, 2022, consisting of 19 calls in which, according to the documentation provided, no communication was established in any of them.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as stipulated in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories

Article 48 of Law 9/2014, of May 9, General Telecommunications Law (in force at the time the infringement was committed), under the heading "Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories," provides in its section 1.b) the following:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

(...)

b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

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III

Advertising Exclusion Systems

Considering the content of section four of article 23 of the LOPDGDD, "4. Those intending to carry out direct marketing communications must first consult the advertising exclusion systems that may affect their actions, excluding from processing the data of those affected who have expressed their opposition or refusal to the same. For these purposes, to consider the previous obligation fulfilled, it will be sufficient to consult the exclusion systems included in the list published by the competent control authority. It will not be necessary to carry out the consultation referred to in the previous paragraph when the affected party has provided, in accordance with the provisions of this organic law, their consent to receive the communication from the party intending to make it."

IV

Conclusion

In the case subject to the complaint, the origin of the complainant's phone number, as stated by the

responding party, comes from the connection made by the complainant themselves to the website of the entity ADSL HOUSE, S.L., to request Simyo products and services, to which the holder voluntarily accessed, provided their phone number, and requested to be called. The date, time, and IP address from which the connection was made are recorded in the information system. This request was made on November 9, 2022.

Between November 9 and 18, 2022, attempts were made to contact the complainant on numerous occasions, during which, according to the documentation provided, communication was not established on any of them, and the responding party ceased processing the data on November 18. Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, as the complainant requested information about specific products and the calls were made to inform the complainant about what was requested through their website and ceased on November 18, 2022.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to LEAST COST ROUTING TELECOM, S.L., and to the complainant.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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